COMMISSION EN BANC RESOLUTION NO. 08-072-2021
Series of 2021

A RESOLUTION CONDEMNING THE RADICALIZATION, RECRUITMENT, AND EXPLOITATION OF INDIGENOUS PEOPLES (IP) YOUTH BY THE COMMUNIST PARTY OF THE PHILIPPINES – NEW PEOPLE'S ARMY – NATIONAL DEMOCRATIC FRONT (CPP – NPA – NDF)

WHEREAS, pursuant Section 17, Article XIV of the 1987 Philippine Constitution and Section 2, Paragraph (f) of Republic Act 8371 otherwise known as the Indigenous Peoples' Rights Act of 1997 (IPRA), the State recognizes its obligations to respond to the strong expression of the Indigenous Cultural Communities/Indigenous Peoples (ICCs/IPs) for cultural integrity in education, health, as well as other services;

WHEREAS, similarly, Section 21 of IPRA provides that consistent with the equal protection clause of the Constitution of the Republic of the Philippines, the Charter of the United Nations (UN), the Universal Declaration of Human Rights (UDHR), the Convention on the Elimination of Discrimination Against Women (CEDAW) and International Human Rights Law (IHRL), the State shall, with due recognition of their distinct characteristics and identity, accord to the members of the ICCs/IPs the rights, protections, and privileges enjoyed by the citizenry. It shall extend to them the same employment rights, opportunities basic services, educational and other rights and privileges available to every member of the society;

WHEREAS, according to the data and information from the National Task Force to End Local Communist Armed Conflict (NTF – ELCAC), more or less seventy percent (70%) of NPAs are reported to be IPs. This is partly because of the CTGs program of establishing purported IP schools (which the CTGs labelled as "Lumad" or "Bakwit" schools) for radicalization in their ADs, such as Salugpongan Ta-Tanu Igkanugon Community Learning Center, Inc. (STTICLC), Tribal Filipino Program of Surigao del Sur (TRIFPS), Mindanao Interfaith Services Foundation, Inc. (MISFI), Center for Lumad Advocacy and Services (CLANS), Alternative Learning Center for Agricultural and Livelihood Development (ALCADEV) and other emerging IP schools;

WHEREAS, the CTGs established Lumad Schools in five (5) Regions in Mindanao and later trafficked the students to Bakwit Schools in key cities nationwide (Haran in Davao City, University of San Carlos (USC) Talamban Campus in Cebu, and University of the Philippines Diliman (UPD) in Quezon City);

WHEREAS, United Church of Christ in the Philippines (UCCP) Haran Center in Davao City is one of the established Lumad Schools in Mindanao which serves as a holding area for Tactical and Organized Bakwit activities, which are considered as CTG fabricated displacements. This is also where IP minors are trained, radicalized and abused, in conditions without adequate nutrition and medical care, which has resulted to the death of two infants. Cases have been filed against UCCP Haran's Bishop Tequis and several individuals for child abuse and violation of the Public Health Act. This is also the pattern found in Community Technical College in South Eastern Mindanao, Inc. (CTCSM), in Maco, Davao de Oro;

WHEREAS, Save Our Schools (SOS) Network, a national umbrella organization of the Lumad school in Mindanao and allied Bakwit school, serve as the propaganda and campaign center for the CTGs "school offensive program" that involves the radicalization and exploitation of the IP youth and the conduct of series of Manilakbayans that mobilize IPs from Mindanao to Manila for anti – government activities;

WHEREAS, it was reported and confirmed by the Armed Forces of the Philippines Intelligence Unit, IP Youth/Students, and Former Rebels (FRs) that these purported IP schools have been the venues for teaching radicalization to IP students in all parts of Mindanao, Cebu, and other parts of the Visayas, and Luzon, during and after which the IP minors are trafficked to various places in furtherance of the CTGs' activities. The CTGs put up, sponsored, and operated these IP schools integrating the Pambansang Demokratikong Paaralan (PADEPA) in their curriculum and applied for permits or accreditation with the Department of Education (DepEd) in a deceitful attempt to create a picture of legitimacy;

WHEREAS, from among the IP students from the Lumad schools and Bakwit schools, CPP Cadres are being recruited and developed to become speakers and leaders of CPP – NDF IP organizations in the Manilakbayan, Lakbay Europe, Lakbay USA, and other international fora for the purpose of generating funds for their front and underground or armed struggle against the Government.

WHEREAS, the CTG schools do not follow the curriculum prescribed by the DepEd but instead use deceptive curriculum designed to radicalize IP students including exposures and interactions with CTG organs of political power embedded in affected communities. Examples of these unsanctioned curriculum used by the CTGs for Grades 1 to 10 are as follows:

1. Grades 1-3 (*Identipikasyon ng Uri at Sektor sa Loob ng Sarili at Pamilya* – Identification of Different Social Classes and Sectors for the Individual and Families)
2. Grades 4-5 (*Pag-alam at Pagkilala sa mga Uri at Sektor ng Komunidad* – Learning and Recognition of the Different Social Classes and Sectors of the Community)
3. Grades 6-7 (*Pagkilala sa Papel at Kalagayan ng mga Uri at Sektor sa Lipunang MP – MK* – Recognition of the Roles of Different Social Classes and Sectors in the Philippine Society in relation to Class Contradiction, i.e., Ruling Class vs. Oppressed Class)
4. Grades 8-9 (*Pag-alam at Pagkilala sa mga Kilusan at Programang Makabayan* – Learning and Recognition of the Organization's different Nationalist Movement)
5. Grade 10 (*Pagsapi, Pakikilahok, at Pamumuno sa mga Kilusan at Programang Makabayan* – Membership, Participation, and Leadership of the Organization and Nationalist Movement)

WHEREAS, the CTGs' front organizations also conducted radicalization activities in the State Universities and Colleges (SUCs). It is reported also that books accredited by DepEd are imitated by the CTGs with alterations aligned with their ideologies;

WHEREAS, considering the complexities in addressing the abovementioned problems and in line with the Whole of Nation Approach there must be concerted actions with the other agencies in the Executive Branch, as well as responsive laws from the Legislative Branches and supporting processes from the Judiciary laws to reinforce IPRA and other existing laws that safeguard and protect the ICCs/IPs;

NOW, THEREFORE, BE IT RESOLVED, as it is hereby **RESOLVED,** that the National Commission on Indigenous Peoples condemns the acts of the CTGs especially those against ICCs/IPs and endorses the attached initial data and information of said killings, and urges:

1. The members of the Senate and House of Representatives, and the Judiciary, to review the laws and processes, within their mandates, on the aforementioned issues, to make them more responsive in protecting the rights of the ICCs/IPs;
2. The Department of Education (DepEd), Commission on Higher Education (CHED), State Universities and Colleges (SUCs), Department of Justice (DOJ), Commission on Human Rights (CHR), Department of Interior and Local Government (DILG), Armed Forces of the Philippines (AFP), Philippine National Police (PNP), National Intelligence Coordinating Agency (NICA), and other related branches of government to conduct a separate or joint investigation on the foregoing CTG atrocities against the ICCs/IPs;
3. The Department of Education (DepEd), Commission on Higher Education (CHED), State Universities and Colleges (SUCs), Department of Justice (DOJ), Commission on Human Rights (CHR), Department of Interior and Local Government (DILG), Armed Forces of the Philippines (AFP), Philippine National Police (PNP), National Intelligence Coordinating Agency (NICA), and other related government agencies to undertake a joint legal offensive to include violations under the Anti-Terrorism Law, law enforcement, and joint information operations through the National Task Force to End Local Communist Armed Conflict (NTF-ELCAC) Framework; and
4. The filing of appropriate cases and actions for violations of the International Humanitarian Law and Anti-Terrorism Law and other appropriate laws not only in the Philippine legal framework, but also in other jurisdictions, including the international fora such as the United Nations (UN).

RESOLVED FURTHER that the Regional and Provincial Offices and Community Service Centers shall:

1. Encourage the IPMRs to sponsor discussion and possible adoption of this Commission En Banc (CEB) Resolution by their respective Local Legislative Councils and Policy Making Bodies; and
2. Conduct information education campaign/consultation (IEC) activities on the abuses of the rights of the ICCs/IPs by the CPP – NPA – NDF and this CEB Resolution.

RESOLVED FINALLY, that the Office of the Executive Director (OED) shall ensure dissemination of this Resolution to all other Government Offices and other concerned stakeholders. The Office of Empowerment and Human Rights (OEHR) is hereby directed to monitor compliance with the above directives.

APPROVED this 20th day of October 2021 in Quezon City, Philippines.

GASPAR A. CAYAT
Commissioner, CAR and Region 1

NORBERTO M. NAVARRO
Commissioner, Region 2

ROLANDO M. RIVERA
Commissioner, Region 3
and Rest of Luzon

JEORGE M. LARGADO
Commissioner, Island Groups
and Rest of Visayas

PINKY GRACE P. PAREJA
Commissioner, Northern and
Western Mindanao

JENNIFER PIA-SIBUG-LAS
Commissioner, Central Mindanao

ALLEN A. CAPUYAN
Chairperson
Commissioner, Southern
and Eastern Mindanao

ATTESTATION

I attest that this Resolution was approved by the Commission during its Regular Session on the date as above stated.

ROGELIO FRANCISCO M. BANTAYAN, JR.
Executive Director and Head Secretariat